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★ DEC 22 2009 ★

 **ORIGINAL** OFFICE

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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RAMEL STALLINGS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
RICHARD KERN, shield # 9459, POLICE OFFICER
JOHN WALSH, shield # 4008, POLICE OFFICER
LOWEZ WALKER, shield # 23357, POLICE OFFICER
MEHMET KANBUR, shield # 04045,

Defendants.
----- X

COMPLAINT

CV 09 - 5595

Jury Trial Demanded

TOWNES, J.

BLOOM, M.J.

PRELIMINARY STATEMENT

1. This is an action brought pursuant to 42 U.S.C. § 1983 alleging civil rights violations by the City of New York and four New York City Police Officers. Plaintiff alleges that, on January 15, 2007, in Brooklyn, police officers falsely arrested him, retaliated against him for engaging in free speech, used unreasonable force on him, fabricated evidence against him, and denied him medical care in violation of the First, Fourth, Sixth and Fourteenth Amendments to the United States Constitution. Plaintiff seeks compensatory and punitive damages, attorney's fees and costs, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the First, Fourth Sixth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c).

PARTIES

4. Plaintiff is a resident of the State of New York, County of Kings.

5. The City of New York is a municipal corporation organized under the laws of the State of New York.

6. Police Officers Richard Kern, John Walsh, Lowez Walker, and Mehmet Kanbur are New York City Police Officers who were employed in the 71st Precinct on January 15, 2007. The officers were acting under color of state law and in their capacities as New York City Police Officers on January 15, 2007. The officers are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The officers are sued in their individual capacities.

7. In December, 2008, Officer Kern was arrested and indicted for aggravated sexual abuse, assault and other charges arising out of an October 15, 2008 incident between Officer Kern and an individual that he arrested named Michael Mineo. The criminal case against Kern is pending in Supreme Court, Kings County

STATEMENT OF FACTS

8. On January 15, 2007, between 11:00 a.m. and 12:00 p.m., plaintiff and his friends Jonathan Cadet, Jean Michel and Edgar Acuna were washing their coats in the laundry and recreation room of 115 Ocean Avenue, Brooklyn, New York.

9. On January 15, 2007, Plaintiff and Jonathan Cadet resided at 115 Ocean Avenue. Plaintiff resided in apartment B3 and Cadet resided in apartment in F10.

10. At the above time and place, Officers Richard Kern, John Walsh, Lowez Walker, and Mehmet Kanbur (collectively, the "officers") entered the location, pointed their guns at plaintiff and his friends, and arrested plaintiff and his friends without probable cause.

11. The officers handcuffed plaintiff and his friends.
12. One of the officers handcuffed plaintiff excessively tight causing bruising and numbness.
13. Plaintiff and Jonathan Cadet told the officers that they were residents of the building.
14. Plaintiff and Cadet offered to prove to the officers that they resided in the building.
15. In response to plaintiff's and Cadet's exercise of free speech, the officers used excessive force on plaintiff and his friends.
16. Police Officer Walsh forcefully grabbed the handcuffed plaintiff, slammed plaintiff's body to the ground, grabbed plaintiff by his hair and slammed his face into the ground, punched plaintiff on the right side of his face, lifted plaintiff off the ground and put him against a wall, punched plaintiff two additional times in the face, and put the barrel of his gun inches from plaintiff's face.
17. The other officers observed Walsh's use of excessive force but they failed to intervene to protect plaintiff.
18. Shortly thereafter, the officers took plaintiff and his friends to the 71st Precinct to process the arrests.
19. Plaintiff asked the officers for medical treatment but his request was denied.
20. While plaintiff was held in the precinct, the officers, pursuant to a conspiracy to have plaintiff prosecuted, prepared police reports which falsely stated that plaintiff had trespassed in a building operated by the New York City Housing Authority.

21. At approximately 6:00 p.m., unidentified officers took plaintiff to Brooklyn Central Booking for further arrest processing and to await arraignment.

22. Plaintiff was held in several cells in Brooklyn Central Booking, all of which were severely overcrowded, infested with roaches and rodents, and filled with garbage and human waste.

23. While plaintiff was held in Central Booking, the officers, pursuant to a conspiracy to have plaintiff prosecuted, misrepresented to a prosecutor employed by the District Attorney for Kings County that plaintiff had committed the crime of trespass.

24. During the late afternoon or early evening of January 16, 2007, plaintiff was arraigned in Criminal Court, Kings County.

25. At the arraignment, the criminal charges filed against plaintiff were dismissed.

26. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of his liberty for well over 24 hours and suffered emotional distress, mental anguish, fear, anxiety, humiliation, embarrassment, and pain and bruising.

27. Jonathan Cadet, Jean Michel and Edgar Acuna each brought civil rights suits against the City of New York and the officers in connection with the aforesaid incident. The City of New York settled each of the cases.

FIRST CLAIM

(FALSE ARREST)

28. Plaintiff repeats the foregoing allegations.

29. Defendants' arrest of plaintiff, as described herein, was without probable cause and therefore in violation of plaintiff's rights under the Fourth Amendment.

SECOND CLAIM

(UNREASONABLE FORCE)

30. Plaintiff repeats the foregoing allegations.

31. Defendants' use of force on plaintiff, as described herein, was objectively unreasonable and therefore in violation of plaintiff's rights under the Fourth Amendment.

THIRD CLAIM

(VIOLATION OF RIGHT TO FREE SPEECH)

32. Plaintiff repeats the foregoing allegations.

33. Defendants' illegal actions against plaintiff were motivated in substantial part by plaintiff's exercise of free speech and therefore violated plaintiff's rights under the First Amendment.

FOURTH CLAIM

(DENIAL OF MEDICAL CARE)

34. Plaintiff repeats the foregoing allegations.

35. Defendants' refusal to provide plaintiff with medical care for his injuries violated plaintiff's rights under the Fourteenth Amendment.

FIFTH CLAIM

(FABRICATION OF EVIDENCE)

36. Plaintiff repeats the foregoing allegations.

37. Because defendants conveyed false information to prosecutors in an effort to have plaintiff prosecuted, they are liable for attempting to deny plaintiff a fair trial under the Sixth Amendment.

SIXTH CLAIM

(MONELL CLAIM)

38. Plaintiff repeats the foregoing allegations.

39. The City of New York, through a policy, practice and custom, directly caused the constitutional violations suffered by plaintiff.

40. Upon information and belief, the City of New York, at all relevant times, was aware that the officers involved in this case are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

41. Despite the above, the City of New York exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline, and monitor the officers and improperly retained and utilized them. Moreover, upon information and belief, the City of New York failed to adequately investigate prior complaints filed against the officers.

42. In addition, the following are City policies, practices and customs:

(a) arresting innocent individuals, primarily minorities, on the pretext that they trespassed or possessed or sold drugs in order to meet productivity goals;

(b) fabricating evidence against individuals;

(c) using excessive force on individuals;

(d) unlawfully strip searching pre-arraignment detainees;

(e) retaliating against individuals who engage in free speech.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

a. Compensatory damages in an amount to be determined by a jury;

- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as this Court may deem just and proper.

DATED: December 22, 2009
Brooklyn, New York



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